

Email David

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Atlas One Solutions

123 Main St, Los Angeles, CA 90001

OFFER OF EMPLOYMENT & AT-WILL AGREEMENT

September 16, 2026

Dear Jordan Smith,

Atlas One Solutions ("the Company") is pleased to offer you (Jordan Smith) the position of **Account Executive**. This letter sets out the terms of your offer and, together with the acknowledgment below, forms our agreement. Your employment with the Company is **at-will**, as described below.

1. POSITION & TERMS OF EMPLOYMENT

Employee	Jordan Smith
Position / Title	Account Executive
Start date	October 1, 2026
Employment type	Full-time
Work arrangement	Onsite
FLSA classification	Exempt (not eligible for overtime)

2. COMPENSATION

You will be paid on a **salary** basis at a rate of **\$125,000 per year**, less applicable taxes and withholdings, payable in accordance with the Company's standard payroll schedule.

As an exempt employee, your compensation covers all hours worked and you are not eligible for overtime pay under the Fair Labor Standards Act or the California Labor Code and Wage Orders, based on the duties of the role and your compensation level. Exempt classification in California also requires that your salary meet the minimum salary threshold, currently twice the state minimum wage for full time work (\$70,304 a year).

Variable Compensation and Commission. In addition to your base salary, you are eligible for variable compensation under the Company's sales commission plan, giving you On Target Earnings (OTE) of up to \$185,000 a year (base salary plus variable compensation at target). Your commission is 8% of signed Annual Contract Value on qualifying sales, measured against a US sales target of \$1.5M. The specific terms, calculation method, payment timing, and conditions of your commission are set out in the Company's written Sales Commission Agreement, which is provided with this offer and which you will be asked to sign. As required by California Labor Code section 2751, that signed written commission agreement governs how your commissions are calculated and paid.

3. STATE SPECIFIC TERMS (CALIFORNIA)

Paid Time Off. Earned and accrued paid time off is treated as wages under California law: it does not expire, is not subject to a use it or lose it policy, and any earned, unused balance will be paid out at the end of your employment. The Company may apply a reasonable accrual cap consistent with California law, at which point further accrual pauses until you use time and drop below the cap.

Paid Sick Leave. You are eligible for paid sick leave meeting or exceeding the requirements of California's Healthy Workplaces, Healthy Families Act, at least 40 hours or 5 days a year, administered under that Act's rules for accrual, carryover, and use. Paid sick leave is provided separately from paid time off and, consistent with California law, is not paid out at the end of your employment.

Final Pay. If your employment ends, final wages will be paid consistent with California law: immediately if you are involuntarily separated or if you resign with 72 hours notice or more, or within 72 hours if you resign without notice.

Business Expense Reimbursement. The Company will reimburse you for necessary business expenses you reasonably incur in performing your duties, in accordance with Company policy and California Labor Code section 2802.

Non-Compete. California law (Business and Professions Code section 16600) voids non-compete clauses for employees. No non-compete clause is included in this agreement, and none applies to your employment, regardless of any optional clause selected in this tool.

4. AT-WILL EMPLOYMENT

AT-WILL EMPLOYMENT STATEMENT

Your employment with Atlas One Solutions is "**at-will**." This means that either you or the Company may terminate the employment relationship at any time, for any reason or no reason, with or without cause and with or without advance notice.

Nothing in this letter, in any Company handbook or policy, or in any verbal statement is intended to create a contract of guaranteed or continued employment, or to guarantee employment for any specific period or under any specific terms.

Your at-will status can only be changed by a written agreement that is signed by both you and an authorized officer of the Company. No manager, supervisor, or representative other than an authorized officer has authority to alter the at-will nature of your employment.

5. CONTINGENCIES

This offer of employment is contingent upon completion of Form I-9 and presentation of documents establishing your identity and authorization to work in the United States and satisfactory reference checks. If any contingency is not satisfied, the Company may withdraw this offer.

6. GOVERNING LAW

This agreement is governed by the laws of the State of **California**, without regard to its conflict-of-laws principles. If any provision is found unenforceable, the remaining provisions remain in full force and effect.

7. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, you acknowledge that you have read and understood this offer and agreement, that your employment is **at-will**, and that this letter contains the full terms of the offer. Any prior verbal or written representations that conflict with these terms are superseded. You understand that your commissions are governed by the separate written Sales Commission Agreement provided with this offer.

ACKNOWLEDGEMENT

Atlas One Solutions acknowledges it has read and understood the attached Hold Harmless and Acknowledgement, including that Atlas One Solutions is not a law firm, this document is not legal advice, the Company is solely responsible for employee classification and compliance, the Company has had the opportunity to have counsel review this document before use, and this document was prepared from information the Company supplied.

EMPLOYEE

FOR ATLAS ONE SOLUTIONS

Signature
Name: Jordan Smith
Date: _____

Signature
Name: _____
Title: _____
Date: _____

Atlas One Solutions is not a law firm and this document is not legal advice. The Company is solely responsible for employee classification and for compliance with applicable employment law. Have this document reviewed by your own counsel before use. This document was prepared from information the Company supplied. At-will rules and required notices vary by state, review with counsel before use.

Atlas One Solutions

SALES COMMISSION AGREEMENT

September 16, 2026

This Sales Commission Agreement (the "Agreement") is entered into between Atlas One Solutions (the "Company") and Jordan Smith ("you"). It is provided together with your offer letter and, as required by California Labor Code section 2751, sets out the method by which your commissions are calculated and paid.

1. Eligibility

You are eligible to earn commissions under this Agreement while you are employed by the Company in a commission eligible sales role, subject to the terms below.

2. On Target Earnings

Your target total compensation (On Target Earnings, or OTE) is \$185,000 a year, consisting of your base salary plus variable commission at target. OTE is a target, not a guarantee; actual commission depends on results measured against the plan.

3. Commission Rate and Target

Your commission is 8% of signed Annual Contract Value on qualifying sales, measured against a US sales target of \$1.5M.

4. How and When a Commission is Earned

A commission is earned when all of the following have occurred: the customer agreement has been fully executed by the customer and accepted in writing by the Company; the customer has paid the first invoice under that agreement; and you are employed by the Company on the date those conditions are both satisfied, except as Section 8 provides. Once a commission is earned it will not be reduced, forfeited, or taken back.

5. Payment Timing

Calculated at the close of each calendar month and paid with the second regular payroll following the end of that month, and in any case no later than the timing applicable law requires. All commission payments are subject to required withholdings.

6. Draws, Advances, and Adjustments

There is no draw or advance against commissions. If a customer agreement on which a commission was paid is cancelled by the customer or refunded in full within ninety (90) days of execution, and the cancellation is not caused by the Company, the Company may recover the commission paid on that agreement only by offset against future commissions that have not yet been earned, in an amount not exceeding the commission paid on the cancelled agreement. No deduction will be made from base salary or from commissions that have already been earned.

7. Changes to the Plan

The commission plan, including its rate, targets, and structure, is subject to change annually and in line with the strategic direction of the business. The Company will provide any updated plan in writing, and it will apply on a going forward basis only. Changes do not reduce commissions already earned under the plan in effect when they were earned.

8. Effect of Separation

Commissions that are earned as of your last day of employment will be paid to you in accordance with law and this Agreement. Commissions that have not yet been earned as of your separation are not payable, except as required by law or as otherwise agreed in writing.

9. At-Will Employment

Nothing in this Agreement changes the at-will nature of your employment described in your offer letter.

10. Entire Commission Agreement, Governing Law

This Agreement is the entire agreement between you and the Company regarding commissions and may be changed only in a writing signed by an authorized officer of the Company. It is governed by the laws of the State of California.

ACKNOWLEDGEMENT

I have received, read, and understand this Sales Commission Agreement, and I understand that it governs how my commissions are calculated and paid. Atlas One Solutions is not a law firm and this document is not legal advice. The Company is solely responsible for employee classification and for compliance with applicable employment law. Have this document reviewed by your own counsel before use. This document was prepared from information the Company supplied.

EMPLOYEE

FOR ATLAS ONE SOLUTIONS

Signature
Name: Jordan Smith
Date: _____

Signature
Name: _____
Title: _____
Date: _____

This is a business document, not legal advice. Atlas One Solutions should have its own employment counsel confirm the earning, timing, and adjustment terms in Sections 4 through 6 before use.

Atlas One Solutions

HOLD HARMLESS & ACKNOWLEDGEMENT

September 16, 2026

Atlas One Solutions is not a law firm and this document is not legal advice. The Company is solely responsible for employee classification and for compliance with applicable employment law. Have this document reviewed by your own counsel before use. This document was prepared from information the Company supplied.

1. Nature of Services, Not a Law Firm

Atlas One Solutions provides business support and document preparation services. Atlas One is not a law firm, does not practice law, and does not provide legal advice; is not a certified public accounting firm and does not provide tax advice; and is not the Company's fiduciary. No attorney client, accountant client, or fiduciary relationship is created.

2. Independent Professional Review

Atlas One has advised the Company, and the Company agrees, to have its own licensed attorney review any document, classification decision, or policy before using or relying on it.

3. Company Responsibilities

The Company is solely responsible for the accuracy and completeness of all information it provides; employee classification, exempt versus non exempt and employee versus contractor; wage and hour, commission, sick leave, vacation, final pay, expense reimbursement, and all other employment law compliance; immigration and work authorization; and all hiring, compensation, and termination decisions.

4. Disclaimer of Warranties

All documents and services are provided as is and as available, without warranty of any kind, express or implied, including any implied warranties of merchantability or fitness for a particular purpose, and without any warranty that a document is accurate, complete, or compliant with or enforceable under the laws of any jurisdiction. Laws change and depend on specific facts.

5. Hold Harmless

The Company agrees to hold Atlas One harmless from and against any and all claims, losses, damages, liabilities, penalties, fines, costs, and expenses arising out of or relating to the Company's use of any document or service, the Company's employment or business decisions, or the Company's failure to obtain independent professional review.

6. Indemnification

The Company shall defend, indemnify, and hold harmless Atlas One and its owners, members, managers, officers, employees, contractors, and agents from and against any and all claims, demands, actions, proceedings, losses, damages, liabilities, penalties, fines, costs, and expenses, including reasonable attorney fees, arising out of or relating to the Company's use of or reliance on any document, the Company's classification, compensation, commission, leave, pay, or termination decisions, inaccurate or incomplete information the Company provided, the Company's failure to obtain independent legal or tax review, the Company's violation of any law, or any claim brought by the Company's employees, contractors, customers, or any government or regulatory agency.

7. Limitation of Liability

To the maximum extent permitted by law, Atlas One's total liability arising out of or relating to the services or any document will not exceed the total fees actually paid by the Company for the specific document or service giving rise to the claim, and Atlas One will not be liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits.

8. Release and Waiver of Unknown Claims, California Civil Code 1542

The Company releases Atlas One from all claims arising out of or relating to the services and the documents, whether known or unknown, and expressly waives the protection of California Civil Code section 1542, which reads: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release, and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party." The Company understands and accepts that this release applies to all such claims, including ones the Company does not currently know or suspect.

9. Governing Law

This Agreement is governed by the laws of the State of Utah, except that the California Civil Code 1542 waiver above is included to give full effect to the release under California law. If any provision is held unenforceable, it will be modified to the minimum extent necessary and the rest remains in effect.

ACKNOWLEDGEMENT

By signing below, the Company acknowledges it has read and understood this Hold Harmless and Acknowledgement, including that Atlas One Solutions is not a law firm, this is not legal advice, the Company is responsible for classification and compliance, the Company has had the opportunity to have counsel review the attached document before use, and the attached document was prepared from information the Company supplied.

ATLAS ONE SOLUTIONS LLC

COMPANY

Signature
Name / Title: _____
Date: _____

Signature
Name / Title: _____
Date: _____

Atlas One Solutions is not a law firm and this document is not legal advice. Atlas One recommends that each party have this Agreement reviewed by its own attorney before signing.